

		Defendants’ motion to tax plaintiff’s “Memorandum of Costs No. 2” is GRANTED. This second motion to tax costs (ROA No. 823) is directed at plaintiff’s 11/14/25 memorandum of costs on appeal pertaining to her appeal of the postjudgment costs award, which the parties refer to as the “Memorandum of Costs on Appeal No. 2” (ROA No. 790). The only item that defendants challenge in plaintiff’s Memorandum of Costs on Appeal No. 2 is item 9, which seeks \$76,594.50 in contractual attorney fees. (See Duffy Decl. ¶ 4, Ex. 3; see also ROA No. 788 [motion for attorney fees on appeal pursuant to contract].) As stated above, contractual attorney fees can only be claimed by noticed motion, and not by the filing of a memorandum of costs. (<i>Lee v. Wells Fargo Bank, N.A.</i>, <i>supra</i>, 88 Cal.App.4th at p. 1198; see Cal. Rules of Court, rule 3.1702; see also <i>Wood v. Santa Monica Escrow Co.</i>, <i>supra</i>, 176 Cal.App.4th at p. 807 [the recovery of costs on appeal and the right to attorney fees are governed by separate rules; “an award of costs on appeal does not determine, or even indicate, who is the prevailing party in the lawsuit for the purpose of awarding fees”]; <i>Butler-Rupp v. Lourdeaux</i>, <i>supra</i>, 154 Cal.App.4th at p. 928; Cal. Rules of Court, rule 8.278(d)(2).) As plaintiff acknowledges in her opposition, the court has already determined that plaintiff’s request for attorney fees at this stage in litigation is premature. (See Duffy Decl. ¶ 4, Ex. 3; ROA No. 866 [4/23/26 minute order].) Defendants shall give notice of all of the above.
10	U.S. Bank National Association vs. Pacific Life Insurance Company 2023-01330408	Motion to Seal Defendant Pacific Life Insurance Company’s Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records they seek to seal consist of, or directly reference, sensitive proprietary business information and/or private information concerning insurance policies held by non-parties to this litigation. (2) Moving Party has shown an overriding interest that supports sealing of records (see <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1222, fn. 46 [recognizing inter alia an overriding interest in

		protection of trade secrets]; <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286 [recognizing that confidential and sensitive business and financial information is ordinarily a matter appropriate for sealing]; <i>Overstock.com v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 503 [“The right to privacy under article I, section 1 of the California Constitution ‘extends to one’s confidential and financial affairs...’ This right embraces confidential financial information in ‘whatever form it takes, whether that form be tax returns, checks, statements, or other account information’”][internal citations omitted].) (3) Publication of these records would prejudice Moving Party by publicly disclosing its own confidential business information and also would prejudice non-parties to this litigation by disclosing private information regarding insurance policies pertaining to them. (4) Moving Party proposed a narrowly tailored means to protect the overriding interest by redacting only those portions of the motion to compel and exhibit 4 that include confidential information. Exhibit 6 can be sealed in its entirety, as the entire document constitutes Defendant’s confidential business information. (5) Moving Party has shown there is no less restrictive means of protecting the overriding interests identified above. Plaintiff originally filed the Motion to Compel Deposition on 4/15/26, and exhibits 3, 4, 5, and 6 to the motion were filed conditionally under seal, pursuant to the Parties’ stipulated protective order. Since Defendant only moved for the sealing of Exhibits 4 and 6, there is no ground for Exhibits 3 and 5 to be sealed. Within 10 days, Plaintiff shall submit an unredacted copy of the Motion to Compel Deposition which the clerk is directed to file under seal. Additionally, within 10 days Plaintiff shall submit a new redacted copy of the Motion to Compel Deposition which does not redact exhibits 3 and 5 to the motion and includes Defendant’s proposed redactions to exhibit 4 included as Exhibit A to the declaration of Alexander Robinson. (See ROA 392.) This new redacted copy of the motion shall be visible on the publicly available record of actions in this matter. Moving Party shall provide notice.
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